

HOUSE No. 2564

The Commonwealth of Massachusetts

PRESENTED BY:

James Arciero

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to emergency hazard health duty.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/14/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>1/14/2025</i>
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/22/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>

HOUSE No. 2564

By Representative Arciero of Westford, a petition (accompanied by bill, House, No. 2564) of James Arciero and others relative to creating a presumption of job relatedness for certain public safety personnel and first responders suffering from incapacitation or inability to perform their duties as a result of the Coronavirus (COVID-19) infection or exposure. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2286 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to emergency hazard health duty.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law, rule or regulation to the contrary, any public
2 safety official, which shall include any individuals employed as police, fire personnel, correction
3 officers, dispatchers, emergency medical technicians, paramedics, nursing professionals, and all
4 individuals employed and considered as 1st responders, who contract, have symptoms of, or
5 otherwise becomes affected by the Coronavirus (COVID-19), that results in a period of
6 hospitalization, quarantine, or require self-quarantined measures as a result of being infected or
7 coming into contact with someone who is infected with this virus, shall have their medical
8 condition or incapacity to work presumed to be work-related. The amount of time said public
9 safety official is incapacitated or unable to perform their duties as a result of the Coronavirus

10 (COVID-19) infection or exposure and the required time of hospitalization, time of quarantine or
11 time of self-quarantine shall be considered as on duty time, and said public safety official shall
12 not be required to use sick time, vacation time, personal time or any other contractual time-off to
13 cover said period of incapacitation or inability to perform regular duty work. This time of
14 incapacitation or inability to perform their duties shall be considered as "emergency hazard
15 health duty," or, in the case of employees to which it applies, be covered under G.L. c. 41,
16 Section 111F.